

be complied with. And where lands were conveyed to trustees for a charity by a deed duly enrolled, and without any reservation upon the face of it to the grantor, but upon a *secret* trust that the deed should not operate until after the settlor's death, the deed was, upon bill filed, declared void, and decreed to be set aside (*e*). But such a secret trust must be proved, and retention of possession by the settlor during his life, though a circumstance of evidence does not necessarily imply a previous fraudulent agreement (*f*). By a recent Act (*g*) it is declared that no endowment of a charity shall be void, by reason that it contains the reservation of a *nominal rent*, or, of *mines* or *easements*, or certain *building covenants*, or a *right of entry* on nonpayment of rent or breach of covenants; or, in the case of *copyholds*, that the endowment was not by *deed*, or in the case of a sale for full value, that the consideration was a rent reserved; and all previous *sales*, notwithstanding defects, are to be deemed valid on enrolment of the deed within twelve months from the passing of the Act, which period was afterwards extended by successive Acts up to the 17th May, 1866, exclusive (*h*). A subsequent Act (*i*) authorizes any deed not duly enrolled to be enrolled *nunc pro tunc*, with the leave of the *Court* of Chancery, to be obtained upon summons in a summary way without service thereof upon any person. And by a later Act still (*k*) it is enacted that if the *clerk of enrolments* in Chancery shall be satisfied by affidavit or otherwise that the assurance was made *bonâ fide* for valuable consideration, without fraud or collusion, and that possession is held under such assurance, *and that [*97] the omission of enrolment arose from ignorance or inadvertency, or from the destruction thereof by time or accident, he may enrol the same *nunc pro tunc*.

[6. **Recreation Grounds.**—The Act of 22 Vict. c. 27, exempts from the mortmain act any grant or conveyance

(*e*) *Way v. East*, 2 Drew. 44.

(*h*) 25 & 26 Vict. c. 17; 27 & 28

(*f*) *Fisher v. Brierley*, 1 De G. F. & J. 643.

Vict. c. 13.

& J. 643.

(*i*) 29 & 30 Vict. c. 57.

(*g*) 24 Vict. c. 9; and see the Amendment Act, 26 & 27 Vict. c.

(*k*) 35 & 36 Vict. c. 24, s. 13.

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